



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/10/2026 - 09:00 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY OF SAN MATEO

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

September 10, 2026 - 9:00AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.

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16-PRO-00272	IN THE MATTER OF GEORGE McMILLAN-GORDON LIVING TRUST, DATED MARCH 12, 2013	MOTION TO MODIFY ORDER
Line 1	Petitioner: Boston Private Bank & Trust Company (LOEW, JEFFREY R.) Petitioner: CARBERRY, SHAUN, ESQ (Pro Se) Decedent: MCMILLAN-GORDON, GEORGE DEAN Interested Party: SKINNER, LEMOINE, III Trustee: MCMILLAN-GORDON, BRIM (BARULICH, PAUL J.) Objector: CARBERRY, SHAUN, ESQ (Pro Se) Objector: KALTSCHMID, BONNIE Payor: BANIS, ALEXANDRA M.	Motion hearings
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) The trustee is ordered to appear to provide the status of the reserve for funeral expenses and provide how they intend to distribute any remaining funds. The motion to modify the court's previous order is DENIED for failure to provide legal basis for relief, as untimely, and for failure to provide proof of service of notice to all trust beneficiaries. The court finds that the motion is wholly without merit and as such authorizes the Trustee to deduct from Movant's share of any remaining distributions the reasonable attorney's fees and costs incurred in responding to the Motion. Counsel for trustee is to submit a declaration and billing statements for the court's review and approval. That hearing is set for December 2, 2026 at 9:00 a.m.		

22-PRO-01276	Conservatorship of Michael Antonio Lopez-Guerra	
Line 2	Proposed Conservatee: Lopez-Guerra, Michael Antonio Petitioner: Guadarrama, Araceli (FELDMAN, AARON R.) Conservatee: Lopez-Guerra, Michael Antonio Conservator: GUADARRAMA, ARACELI (FELDMAN, AARON R.) Conservator: Lahargoue, Mark Gerard	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship continue and be reviewed in two (2) years; The assessment amount of \$850.00 for the cost of this investigation be ordered and deferred until the Court determines sufficient funds exist.		

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22-PRO-01282	Conservatorship of MASON JAMES RICHTER	
Line 3	Proposed Conservatee: RICHTER, MASON JAMES Petitioner: RICHTER, EDWIN PATRICK (DAYE, ROBERT E.) Petitioner: RICHTER, MARILYN KOROA (DAYE, ROBERT E.) Conservatee: RICHTER, MASON JAMES Proposed Conservator: RICHTER, EDWIN PATRICK (DAYE, ROBERT E.) Proposed Conservator: RICHTER, MARILYN KOROA (DAYE, ROBERT E.) Conservator: RICHTER, EDWIN PATRICK (DAYE, ROBERT E.) Conservator: RICHTER, MARILYN KOROA (DAYE, ROBERT E.)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years; The assessment amount of \$850.00 for the cost of this investigation be ordered and deferred until the Court determines sufficient funds exist. Conservators are ordered to file of the Pre-Move Notice (GC-079) within 30 days, and the Post-Move Notice (GC-080) once the conservatee's move is completed.		

24-PRO-00825	Guardianship of Ethan A. Sfatcu	PETITION FOR: (1) AWARD OF GUARDIAN'S COMPENSATION; etc.
Line 4	Petitioner: Sfatcu, Vlad (ROWE, JESSICA L.) Ward: Sfatcu, Ethan A. (STEINER, KATRINA M.) Guardian: Sfatcu, Vlad Temporary Guardian: Sfatcu, Vlad Objector: ROSSFELD, KRYSTINA (Pro Se)	Status Hearing
Tentative Ruling: APPEARANCE OPTIONAL Matter CONTINUED to November 30, 2026 at 9:00 a.m. for notice to the ward under Probate Code § 1460(b)(2). The Court does not agree that paralegal Hutchinson's fee for work done from 6/23/2026 through 8/27/2026 justifies fees in the amount of \$30,429.00. It is difficult to approve this amount when taking into consideration the nature and difficulty of the tasks performed, results achieved, and benefit to the guardianship estate, as her hourly fee of \$300 greatly exceeds what a qualified accountant in the greater San Francisco Bay Area would have charged. While the Court agrees with counsel that greater expense would have been incurred had such services and tasks been performed by the attorneys, the guardian would have been more prudent with the estate's		



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finances if an accountant were hired to complete the accounting. As such, the fee award will be reduced, finding that \$200 per hour is a reasonable rate for Ms. Hutchinson's work on the accounting. [\$21,600 rather than \$30,429.00]. Once proper notice is provided to the ward, the court will then be prepared to approve the accounting and award fees as requested to the guardian, and the reduced fees to counsel consistent with this ruling. As such, petitioner shall submit a revised proposed order which reduces attorney fees by \$8,829.00

24-PRO-01251	IN RE THE ZAPLETAL FAMILY TRUST	
Line 5	Petitioner: Zapletal, Alexa (MANZOOR, SUMBLE NGUYEN, AILEEN R.) Respondent: Canas, Hernan (NOYES, GUY E. Pro Se) Respondent: Canas, Mary Ellen (Pro Se) Decedent: ZAPLETAL, DAWN Decedent: ZAPLETAL, RAYMOND Respondent: Shustoff, Mark A. (BIORN, KRISTOFER W.) Claimant: Phillips & Cohen Associates, Ltd.	Status Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The Petition for Instruction set on October 20th will be re-set on October 30, 2026 when the First Amended Petition for Relief is set. The court accepts the stipulation of Petitioner and Respondent Trustee that Trustee's response to the initial petition, filed 4/4/2025, will act as his response to the First Amended Petition. The Court issues an Order to Show Cause as to why Mary Ellen Canas and Hernan Canas should not now be held in contempt for failing to abide by this court's previous order to pay monetary sanctions. That shall also be set on October 30, 2026 at 9:00 a.m.



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25-PRO-00719	IN RE THE MATTER OF THE DELLA SANTINA FAMILY REVOCABLE DECLARATION OF TRUST UDT 08/07/2000	Petition to Approve Accounting Verified Petition for Order Authorizing Sale of Trust Real Property, etc.
Line 6, 7, 8	Petitioner: Santina, Lisa Della (HARRIS, MATTHEW W, ESQ) Objector: DELLA SANTINA, JOE (LOEW, JEFFREY R. WIGGS, GEOFFREY E.) Respondent: Abraham, A. K.	Petition Hearing Order to Show Cause Hearing Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom allowed)

Respondent Joeseph Della Santina filed on 9/08/2026 an objection to Petitioner's initial VERIFIED PETITION FOR ORDER CONFIRMING TRUST ASSET, COMPELLING RECONVEYANCE TO TRUST, FOR CONSTRUCTIVE TRUST, PROBATE CODE 859 DAMAGES, FRAUD, ATTORNEYS FEES AND COSTS, which was filed 5/30/2025. On 9/04/26 he filed a response to petitioner's VERIFIED PETITION FOR ORDER AUTHORIZING SALE OF TRUST REAL PROPERTY (3055 ARBOLADO DRIVE, WALNUT CREEK, CALIFORNIA);

The OSC issued to Joseph Della Santina is discharged.

The Court GRANTS Successor temporary trustee Lisa Della Santina's petition for sale of trust real property. The Trustee shall retain a licensed real estate broker and list the Property for sale on the open market. The Trustee shall sell the Property in its present "as-is" condition, without repairs or warranties; shall accept the highest and best offer consistent with the Property's fair market value; and shall execute all documents necessary to complete the sale. The net sale proceeds will be deposited into the Trust's account and will remain subject to the Court's continuing supervision. Joseph's reserved claims for reimbursement, offsets, and accounting adjustments will be resolved in connection with the pending accounting, without prejudice to Petitioner's claims against Joseph for fraud and double damages under Probate Code section §859

Parties are to meet and confer concerning potential dates for trial, and return to court December 2, 2026 at 9:00 a.m. to set the remaining contested issues for trial. The trial will address both Lisa Della Santina's initial petition and Joseph Della Santina's petition to approve accounting.



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25-PRO-01187	Estate of Chandra B Pande	*AMENDED- Continued from 07/08/26
Line 9	Petitioner: Pande, Shirley (STEELE, ANNE E.) Decedent: Pande, Chandra B Objector: PANDE, VINA (Pro Se) Proposed Personal Representative: Pande, Shirley	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE OPTIONAL The objection is overruled. The amended petition for administration is GRANTED.		

25-PRO-01658	IN THE MATTER OF: THE LAURA A. SHEEHAN LIVING TRUST	RE: Filing of Respondent's Documents &/or TSC
Line 10	Petitioner: Sheehan, Christopher S. (Pro Se) Decedent: SHEEHAN, LAURA A. Respondent: Bertolacci, Anthony J. (MCSWEENEY, BRIAN J.) Respondent: Bertolacci, Laura S. (MCSWEENEY, BRIAN J.) Respondent: Sheehan, Daniel L. (MCSWEENEY, BRIAN J.) Respondent: Sheehan, Linda M. (MCSWEENEY, BRIAN J.)	Status Hearing
Tentative Ruling: OFF CALENDAR. Matter dismissed 7/28/26		



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26-PRO-00061	Conservatorship of McClain Kenny Croft	
Line 11	Proposed Conservatee: Croft, McClain Kenny (FRIEDMAN, SHERRIE S.) Petitioner: Croft, Laura Diane (LYNCH, ALEXIS) Proposed Conservator: Croft, Laura Diane Proposed Conservator: HOWARTH, PATRICIA	Appointment of Conservator for Person

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

The Court intends to grant the Petition and order the following:

1. The Court appoints Laura Diane Croft and Patricia Howarth as limited conservator of the person of McClain Kenny Croft, and a limited conservatorship of person is the least restrictive alternative to protect the proposed conservatee.
2. The following limited powers are granted to the limited conservator pursuant to Probate Code section 2351.5 and the limited conservatee's civil and legal rights will be limited in the following:
 - To fix the residence or specific dwelling of the limited conservatee;
 - Access to the confidential records and papers of the limited conservatee;
 - The right of the limited conservatee to contract;
 - The power of the limited conservatee to give or withhold medical consent; and
 - Decisions concerning the education of the limited conservatee
3. The requests for limited powers listed in the Amended Petition related to marriage, and sexual and social contacts are denied.
4. Pursuant to Probate Code Section 1830, the conservator is ordered to file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
5. A nonappearance hearing on the limited conservator's filing of the following documents is set for December 8, 2026:
 - a. Confidential Conservatorship Care Plan Part 1 (GC-355) & Confidential Conservatorship Care Plan Part 2 (GC-356).
6. The conservators are required to attend the conservator education class within six (6) months of appointment and a Proof of Completion should be filed with the Court.
7. The assessment of \$850 is ordered and deferred until the Court determines sufficient funds exist.
8. The conservatorship shall be reviewed in one (1) year.



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26-PRO-00154	Conservatorship of VICTOR QUINONES	Continued from 07/10/26
Line 12	Proposed Conservatee: QUINONES, VICTOR (HOOPES, PATRICK) Petitioner: KARVER, DEANNA (Pro Se) Proposed Conservator: KARVER, DEANNA Temporary Conservatee: QUINONES, VICTOR (HOOPES, PATRICK) Temporary Conservator: KARVER, DEANNA	Appointment of Conservator for Person and Estate

Tentative Ruling:

APPEARANCE ORDERED

Petitioner is to appear and explain why she has not filed a proof of service showing that Victor Quinones Jr. was served with a copy of the petition and a notice of hearing per PrC 1822, and why she has not filed an Amended Capacity Declaration which shown an examination date within 120 days of filing the petition. LR 4.81.10. Both were ordered at the hearing on 7/10/2026. The proposed conservatee objects to the establishment of a conservatorship, so the matter will likely be set for an evidentiary hearing.

26-PRO-00488	IN THE MATTER OF THE FREDERICK A. FORSTER TRUST DATED JANUARY 13, 1995	
Line 13	Petitioner: Evans, Victoria (LYTLE, BRETT S.) Decedent: Forster, Frederick A	Petition to Confirm Trust Assets (Heggstad)

Tentative Ruling:

NO APPEARANCE

This matter is continued to September 15, 2026 at 9:00 to be heard with the Petition for Instructions.



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26-PRO-00779	IN THE MATTER OF FOGARTY FAMILY REVOCABLE TRUST DATED SEPTEMBER 14, 1971	
Line 14	Petitioner: FOGARTY, JONATHON DAVID (HIRE, SARA E.) Petitioner: FOGARTY, ROSALEE MAE (HIRE, SARA E.) Decedent: FOGARTY, THOMAS J.	Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL The petition confirming beneficiary designation is GRANTED absent cogent objection.		

26-PRO-01018	Estate of Charles R. Lemmelin	
Line 15	Petitioner: Lemmelin, Kyra (DUGONI, LAURENCE P.) Decedent: Lemmelin, Charles R. Proposed Personal Representative: Lemmelin, Kyra	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE OPTIONAL The petition for ancillary administration is GRANTED absent cogent objection. Bond is set at \$20,000.		

26-PRO-01019	Estate of Sheila Mae Muller	
Line 16	Petitioner: Piper, Derek (ROSAS, CARMEN R.) Decedent: Muller, Sheila Mae Proposed Personal Representative: Piper, Derek	Letters of Administration Hearing



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Tentative Ruling:

NO APPEARANCE

Petitioner is to file an amended petition which 1.) indicates in the initial heading that he seeks full authority to administer under the IAEA [the caption must match 2C]; 2.) file proof of publication; 3.) file proof of service on all heirs; 4.) attach a copy of the DPOA of decedent's sibling which names Petitioner. The next court date is November 23, 2026 at 9:00 a.m.

PRO092385	ESTATE OF BARBARA C. BARNETT	Thirty-First Account and Report of Trustees and Petition for Its Settlement, and for Allowance of Trustee Fees and Attorneys' Fees (Probate Code, Section 17200(b)(5))
Line 17	Petitioner: BARNETT, DOUGLAS A. (KRAMER, BETH L.) Petitioner: BARNETT, JAMES G. (KRAMER, BETH L.) Petitioner: WELLS FARGO BANK NA (KRAMER, BETH L. COFFINO-GREENBERG, ELI) Decedent: BARNETT, BARBARA C. Participant: ELIZABETH, ANNE BIRD, Participant: JULIA P. WALD Payor: Payor	Petition Hearing

Tentative Ruling:

NO APPEARANCE

Petition GRANTED absent cogent objection.



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PRO099873	CONSERVATORSHIP OF KALOMO ANKOANDA-KING	THIRTIETH 30TH) ACCOUNT AND REPORT OF KALOMO ANKOANDA- KING IRREVOCABLETRUST, PETITION FOR. SETTLEMENT OF ACCOUNT, FOR ALLOWANCE OF COMPENSATIONTO CO- TRUSTEES AND THEIR'ATTORNEY FEES AND ALLOWING COMPENSATION FORATTENDANT SERVICES
Line 18	Petitioner: ANKOANDA, NOBANTU (PACKARD, DAVID R.) Conservatee: ANKOANDA-KING, KALOMO Payor: Payor	Petition Hearing
Tentative Ruling: NO APPEARANCE Petition GRANTED absent cogent objection.		

Hearings Total: 18